

ATTACHMENT #1

PROFESSIONAL SERVICES CONTRACT BETWEEN
THE CITY OF HUNTINGTON BEACH AND
COMMUNICATIONS BROKERS & CONSULTANTS, INC.
FOR WIRELESS TELECOM SERVICE AUDIT SERVICES

THIS AGREEMENT ("Agreement") is made and entered into by and between the City of Huntington Beach, a municipal corporation of the State of California, hereinafter referred to as "CITY," and COMMUNICATIONS BROKERS & CONSULTANTS, INC., hereinafter referred to as "CONSULTANT."

WHEREAS, CITY desires to engage the services of a consultant to perform a wireless telecom service audit; and

Pursuant to documentation on file in the office of the City Clerk, the provisions of the Huntington Beach Municipal Code, Chapter 3.03, relating to procurement of professional service contracts have been complied with; and

CONSULTANT has been selected to perform these services,

NOW, THEREFORE, it is agreed by CITY and CONSULTANT as follows:

1. SCOPE OF SERVICES

CONSULTANT shall provide all services as described in Exhibit "A," which is attached hereto and incorporated into this Agreement by this reference. These services shall sometimes hereinafter be referred to as the "PROJECT."

CITY hereby designates Dave Kirk, who shall represent it and be its sole contact and agent in all consultations with CITY during the performance of this Agreement.

2. CITY STAFF ASSISTANCE

CITY shall assign a staff coordinator to work directly with CONSULTANT in the performance of this Agreement.

3. TERM; TIME OF PERFORMANCE

Time is of the essence of this Agreement. The services of CONSULTANT are to commence on _____, (the "Commencement Date"). This Agreement shall automatically terminate three (3) years from the Commencement Date, unless extended or sooner terminated as provided herein. All tasks specified in Exhibit "A" shall be completed no later than _____ from the Commencement Date. The time for performance of the tasks identified in Exhibit "A" are generally to be shown in Exhibit "A." This schedule may be amended to benefit the PROJECT if mutually agreed to in writing by CITY and CONSULTANT.

In the event the Commencement Date precedes the Effective Date, CONSULTANT shall be bound by all terms and conditions as provided herein.

4. COMPENSATION

In consideration of the performance of the services described herein, CITY agrees to pay CONSULTANT on a time and materials basis at the rates specified in Exhibit "B," which is attached hereto and incorporated by reference into this Agreement, a fee, including all costs and expenses, not to exceed PAYMENT SCH "B" Dollars (\$ X 41K 807).

5. EXTRA WORK

In the event CITY requires additional services not included in Exhibit "A" or changes in the scope of services described in Exhibit "A," CONSULTANT will undertake such work only after receiving written authorization from CITY. Additional compensation for such extra work shall be allowed only if the prior written approval of CITY is obtained.

6. METHOD OF PAYMENT

CONSULTANT shall be paid pursuant to the terms of Exhibit "B."

7. DISPOSITION OF PLANS, ESTIMATES AND OTHER DOCUMENTS

CONSULTANT agrees that title to all materials prepared hereunder, including, without limitation, all original drawings, designs, reports, both field and office notices, calculations, computer code, language, data or programs, maps, memoranda, letters and other documents, shall belong to CITY, and CONSULTANT shall turn these materials over to CITY upon expiration or termination of this Agreement or upon PROJECT completion, whichever shall occur first. These materials may be used by CITY as it sees fit.

8. HOLD HARMLESS

CONSULTANT hereby agrees to protect, defend, indemnify and hold harmless CITY, its officers, elected or appointed officials, employees, agents and volunteers from and against any and all claims, damages, losses, expenses, judgments, demands and defense costs (including, without limitation, costs and fees of litigation of every nature or liability of any kind or nature) arising out of or in connection with CONSULTANT's (or CONSULTANT's subcontractors, if any) negligent (or alleged negligent) performance of this Agreement or its failure to comply with any of its obligations contained in this Agreement by CONSULTANT, its officers, agents or employees except such loss or damage which was caused by the sole negligence or willful misconduct of CITY. CONSULTANT will conduct all defense at its sole cost and expense and CITY shall approve selection of CONSULTANT's counsel. This indemnity shall apply to all claims and liability regardless of whether the amount of indemnification to be provided by CONSULTANT.

9. PROFESSIONAL LIABILITY INSURANCE

CONSULTANT shall obtain and furnish to CITY a professional liability insurance policy covering the work performed by it hereunder. This policy shall provide coverage for

CONSULTANT's professional liability in an amount of not less than One Million Dollars (\$1,000,000.00) per occurrence and in the aggregate. The above-mentioned insurance shall not contain a self-insured retention without the express written consent of CITY; however an insurance policy "deductible" of Ten Thousand Dollars (\$10,000.00) or less is permitted. A claims-made policy shall be acceptable if the policy further provides that:

A. The policy retroactive date coincides with or precedes the initiation of the scope of work (including subsequent policies purchased as renewals or replacements).

B. CONSULTANT shall notify CITY of circumstances or incidents that might give rise to future claims.

CONSULTANT shall notify CITY of circumstances or incidents that might give rise to future claims.

CONSULTANT will make every effort to maintain similar insurance during the required extended period of coverage following PROJECT completion. If insurance is terminated for any reason, CONSULTANT agrees to purchase an extended reporting provision of at least six (6) years to report claims arising from work performed in connection with this Agreement.

If CONSULTANT fails or refuses to produce or maintain the insurance required by this section or fails or refuses to furnish the CITY with required proof that insurance has been procured and is in force and paid for, the CITY shall have the right, at the CITY's election, to forthwith terminate this Agreement. Such termination shall not affect CONSULTANT's right to be paid for its time and materials expended prior to notification of termination. CONSULTANT waives the right to receive compensation and agrees to indemnify the CITY for any work performed prior to approval of insurance by the CITY.

10. CERTIFICATES OF INSURANCE

Prior to commencing performance of the work hereunder, CONSULTANT shall furnish to CITY a certificate of insurance subject to approval of the City Attorney evidencing the foregoing insurance coverage as required by this Agreement; the certificate shall:

- A. provide the name and policy number of each carrier and policy;
- B. state that the policy is currently in force; and
- C. shall promise that such policy shall not be suspended, voided or canceled by either party, reduced in coverage or in limits except after thirty (30) days' prior written notice; however, ten (10) days' prior written notice in the event of cancellation for nonpayment of premium.

CONSULTANT shall maintain the foregoing insurance coverage in force until the work under this Agreement is fully completed and accepted by CITY.

The requirement for carrying the foregoing insurance coverage shall not derogate from CONSULTANT's defense, hold harmless and indemnification obligations as set forth in this Agreement. CITY or its representative shall at all times have the right to demand the original or a copy of the policy of insurance. CONSULTANT shall pay, in a prompt and timely manner, the premiums on the insurance hereinabove required.

11. INDEPENDENT CONTRACTOR

CONSULTANT is, and shall be, acting at all times in the performance of this Agreement as an independent contractor herein and not as an employee of CITY. CONSULTANT shall secure at its own cost and expense, and be responsible for any and all payment of all taxes, social security, state disability insurance compensation, unemployment compensation and other payroll deductions for CONSULTANT and its officers, agents and

employees and all business licenses, if any, in connection with the PROJECT and/or the services to be performed hereunder.

12. TERMINATION OF AGREEMENT

All work required hereunder shall be performed in a good and workmanlike manner. CITY may terminate CONSULTANT's services hereunder at any time with or without cause, and whether or not the PROJECT is fully complete. Any termination of this Agreement by CITY shall be made in writing, notice of which shall be delivered to CONSULTANT as provided herein. In the event of termination, all finished and unfinished documents, exhibits, report, and evidence shall, at the option of CITY, become its property and shall be promptly delivered to it by CONSULTANT.

13. ASSIGNMENT AND DELEGATION

This Agreement is a personal service contract and the work hereunder shall not be assigned, delegated or subcontracted by CONSULTANT to any other person or entity without the prior express written consent of CITY. If an assignment, delegation or subcontract is approved, all approved assignees, delegates and subconsultants must satisfy the insurance requirements as set forth in Sections 9 and 10 hereinabove.

14. COPYRIGHTS/PATENTS

CITY shall own all rights to any patent or copyright on any work, item or material produced as a result of this Agreement.

15. CITY EMPLOYEES AND OFFICIALS

CONSULTANT shall employ no CITY official nor any regular CITY employee in the work performed pursuant to this Agreement. No officer or employee of CITY shall have any

financial interest in this Agreement in violation of the applicable provisions of the California Government Code.

16. NOTICES

Any notices, certificates, or other communications hereunder shall be given either by personal delivery to CONSULTANT's agent (as designated in Section 1 hereinabove) or to CITY as the situation shall warrant, or by enclosing the same in a sealed envelope, postage prepaid, and depositing the same in the United States Postal Service, to the addresses specified below. CITY and CONSULTANT may designate different addresses to which subsequent notices, certificates or other communications will be sent by notifying the other party via personal delivery, a reputable overnight carrier or U. S. certified mail-return receipt requested:

To CITY:

To CONSULTANT:

City of Huntington Beach
Attn:
2000 Main Street
Huntington Beach, CA 92648

17. CONSENT

When CITY's consent/approval is required under this Agreement, its consent/approval for one transaction or event shall not be deemed to be a consent/approval to any subsequent occurrence of the same or any other transaction or event.

18. MODIFICATION

No waiver or modification of any language in this Agreement shall be valid unless in writing and duly executed by both parties.

19. SECTION HEADINGS

The titles, captions, section, paragraph and subject headings, and descriptive phrases at the beginning of the various sections in this Agreement are merely descriptive and are

included solely for convenience of reference only and are not representative of matters included or excluded from such provisions, and do not interpret, define, limit or describe, or construe the intent of the parties or affect the construction or interpretation of any provision of this Agreement.

20. INTERPRETATION OF THIS AGREEMENT

The language of all parts of this Agreement shall in all cases be construed as a whole, according to its fair meaning, and not strictly for or against any of the parties. If any provision of this Agreement is held by an arbitrator or court of competent jurisdiction to be unenforceable, void, illegal or invalid, such holding shall not invalidate or affect the remaining covenants and provisions of this Agreement. No covenant or provision shall be deemed dependent upon any other unless so expressly provided here. As used in this Agreement, the masculine or neuter gender and singular or plural number shall be deemed to include the other whenever the context so indicates or requires. Nothing contained herein shall be construed so as to require the commission of any act contrary to law, and wherever there is any conflict between any provision contained herein and any present or future statute, law, ordinance or regulation contrary to which the parties have no right to contract, then the latter shall prevail, and the provision of this Agreement which is hereby affected shall be curtailed and limited only to the extent necessary to bring it within the requirements of the law.

21. DUPLICATE ORIGINAL

The original of this Agreement and one or more copies hereto have been prepared and signed in counterparts as duplicate originals, each of which so executed shall, irrespective of the date of its execution and delivery, be deemed an original. Each duplicate original shall be deemed an original instrument as against any party who has signed it.

22. IMMIGRATION

CONSULTANT shall be responsible for full compliance with the immigration and naturalization laws of the United States and shall, in particular, comply with the provisions of the United States Code regarding employment verification.

23. LEGAL SERVICES SUBCONTRACTINT PROHIBITED

CONSULTANT and CITY agree that CITY is not liable for payment of any subcontractor work involving legal services, and that such legal services are expressly outside the scope of services contemplated hereunder. CONSULTANT understands that pursuant to *Huntington Beach City Charter* Section 309, the City Attorney is the exclusive legal counsel for CITY; and CITY shall not be liable for payment of any legal services expenses incurred by CONSULTANT.

24. ATTORNEY'S FEES

In the event suit is brought by either party to construe, interpret and/or enforce the terms and/or provisions of this Agreement or to secure the performance hereof, each party shall bear its own attorney's fees, such that the prevailing party shall not be entitled to recover its attorney's fees from the nonprevailing party.

25. SURVIVAL

Terms and conditions of this Agreement, which by their sense and context survive the expiration or termination of this Agreement, shall so survive.

26. GOVERNING LAW

This Agreement shall be governed and construed in accordance with the laws of the State of California.

27. SIGNATORIES

Each undersigned represents and warrants that its signature hereinbelow has the power, authority and right to bind their respective parties to each of the terms of this Agreement, and shall indemnify CITY fully for any injuries or damages to CITY in the event that such authority or power is not, in fact, held by the signatory or is withdrawn.

CONSULTANT's initials

Ch H. LM

28. ENTIRETY

The parties acknowledge and agree that they are entering into this Agreement freely and voluntarily following extensive arm's length negotiation, and that each has had the opportunity to consult with legal counsel prior to executing this Agreement. The parties also acknowledge and agree that no representations, inducements, promises, agreements or warranties, oral or otherwise, have been made by that party or anyone acting on that party's behalf, which are not embodied in this Agreement, and that that party has not executed this Agreement in reliance on any representation, inducement, promise, agreement, warranty, fact or circumstance not expressly set forth in this Agreement. This Agreement, and the attached exhibit, contain the entire agreement between the parties respecting the subject matter of this Agreement, and supersede all prior understandings and agreements whether oral or in writing between the parties respecting the subject matter hereof.

29. EFFECTIVE DATE

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by and through their authorized officers. This Agreement shall expire when terminated as provided herein.

IN WITNESS WHEREOF, the parties have caused this Agreement to be executed by and through their authorized officers.

CONTRACTOR

COMMUNICATIONS BROKERS &
CONSULTANTS, INC.

By: Elizabeth H. Lev
Elizabeth H. Lev

print name

ITS: (circle one) Chairman President Vice President

CITY OF HUNTINGTON BEACH, a
municipal corporation of the State of
California

Mayor

AND
By: Gregory Gasson
GREGORY GASSON

print name

ITS: (circle one) Secretary Chief Financial
Officer Asst. Secretary - Treasurer

City Clerk

INITIATED AND APPROVED:

Jan. Amador
Director of Finance

REVIEWED AND APPROVED:

City Manager

APPROVED AS TO FORM:

James McGee
City Attorney mv 5-21-12
5.21.12

EXHIBIT "A"

A. STATEMENT OF WORK:

1. CONTRACTOR shall conduct a forensic audit of the CITY's wireless phone bills dating back seven years.

This audit will include the following:

- i. Review all Wireless Carrier contracts, terms and conditions
 - ii. Obtain carrier data
 - iii. Review bills for at least the past 12 month period
 - iv. Review bills/data for more than 12 months based on initial findings, statute of limitations and/or CITY/Carrier contractual terms/conditions
 - v. Identify CITY overpayments to carriers
2. CONTRACTOR's forensic audit areas and categories to be reviewed will include:
 - i. Contract terms
 - ii. Fees
 - iii. Rate Plans (allowances, costs and overages)
 - iv. Plan Features and options to ensure carriers applied according to contract pricing and terms
 - v. Minute Allowances
 - vi. Carrier billing data to ensure proper billing
 - vii. Excessive overages and areas of abuse
 - viii. Pro-rates
 - ix. Voice, data, text and international charges
 - x. Monthly access fees to ensure carriers applied according to contract pricing and terms
 - xi. Monthly discounts to ensure carriers applied according to contract pricing and terms
 - xii. Standard terms, conditions and fees such as activation, Early Termination Fees (ETFs) have been applied appropriately
 - xiii. Equipment costs charged versus new activations and renewals
 - xiv. Determining whether wrong rate plans were charged applied
 - xv. Inappropriate ETF's
 - xvi. Inaccurate charges billed
 - xvii. Continued billing for discontinued lines
 - xviii. Inappropriate overage charges (billed for overage but within monthly minutes)
 - xix. Inaccurate per-minute overage charges
 - xx. Inappropriate long distance charges (calls made domestically within in-network calling areas)

3. CONTRACTOR shall conduct a rate plan analysis and plan optimization. This optimization will include the following:
 - i. Obtain billing data from the carriers
 - ii. Review carrier agreements
 - iii. Produce a rate plan strategy to determine the best set of rate plans for each user
4. CONTRACTOR shall be authorized to request billing information, customer service records, carrier contracts, agreements, requests for service and any other related documents between carriers/service providers for the CITY. In the event that CONTRACTOR recommends service modifications, additions or deletions, CONTRACTOR may order such changes only upon receipt of written approval from the CITY. CONTRACTOR may request equipment maintenance billing records both hard and soft copy.
5. At CITY's sole discretion, CONTRACTOR may discuss, negotiate, and with prior written consent of the CITY, resolve contract compliance issues with carriers. The CITY must pre-approve any negotiated terms.

B. CONSULTANT's DUTIES AND RESPONSIBILITIES:

Deliverables

- a. Reports – Interim (within 30 days of obtaining billing data) and Final
 - i. Detailed report by department
 - ii. Detailed line by line recovery opportunities
 - iii. Explanation in detail of recovery, credits and savings opportunities
 - iv. Explanation of specific errors uncovered and calculation of correct charges
 - v. Missed optimization opportunities
 - vi. Immediate and short term future savings opportunities
 - vii. Usage patterns and recommended plans based on the usage patterns
- b. Assistance to the CITY
 - i. Provide assistance to the CITY in preparing claims, negotiating settlements by providing analysis to support decision making
 - ii. Prepare carrier specific reports and claim submittals
- c. CONTRACTOR will perform the audit according to the Statement of Work and provide the Deliverables for the CITY.
- d. CONTRACTOR will not begin any work until authorization is received from the CITY.

- e. If needed, CITY will execute a carrier "Letter of Agency" to allow CONTRACTOR to proceed with information gathering.
- f. CITY reserves the right to not issue an authorization to proceed.

C. CITY's DUTIES AND RESPONSIBILITIES:

- 1. Authorization to proceed awarded on this contract will determine the CITY's obligation. No guarantee is made that any Authorization will be issued against this Contract.
- 2. The CITY makes no commitment to fund this Contract, except from recoveries, refunds, services exchanges, and/or other credits.
- 3. CITY, at its sole discretion, may resolve any discrepancies found in CONSULTANT's audit. In the event CITY does not go forward or does not recover, CONSULTANT expressly agrees it will not be compensated.

EXHIBIT "B"

Payment Schedule (Fixed Fee Payment)

1. CONSULTANT shall be entitled to compensation based on a contingent fee of 20% of refunds and/or credits that the CITY realizes. No other compensation shall be provided, including expenses of any kind.

2. Delivery of work product: A copy of every memorandum, letter, report, calculation and other documentation prepared by CONSULTANT shall be submitted to CITY to demonstrate progress toward completion of tasks. In the event CITY rejects or has comments on any such product, CITY shall identify specific requirements for satisfactory completion.

3. CONSULTANT shall submit to CITY an invoice upon verification of credits and/or refunds received by the CITY. Such invoice shall:

- A) Reference this Agreement;
- B) Describe the services performed;
- C) Show the total amount of the payment due;
- D) Include a certification by a principal member of CONSULTANT's firm that the work has been performed in accordance with the provisions of this Agreement; and
- E) Parties agree that the CITY may set up payment terms for CONSULTANT's fees in the event the refunds and/or credits including negotiated service exchange or settlement is received by the CITY over a period of time instead of a lump sum settlement. An example of a negotiated service exchange is if the carrier offers 12 months of free data plan in lieu of issuing a credit or refund. The value of the recovery, regardless of how realized, becomes part of the verified recovery amount and is subject to the 20% fee.

Upon submission of any such invoice, if CITY is satisfied that CONSULTANT is making satisfactory progress toward completion of tasks in accordance with this Agreement, CITY shall approve the invoice, in which event payment shall be made within thirty (30) days of receipt of the invoice by CITY. Such approval shall not be unreasonably withheld. If CITY does not approve an invoice, CITY shall notify CONSULTANT in writing of the reasons for non-approval and the schedule of performance set forth in Exhibit "A" may at the option of CITY be suspended until the parties agree that past performance by CONSULTANT is in, or has been brought into compliance, or until this Agreement has expired or is terminated as provided herein.

4. Any billings for extra work or additional services authorized in advance and in writing by CITY shall be invoiced separately to CITY. Such invoice shall contain all of the information required above, and in addition shall list the hours expended and hourly rate charged for such time. Such invoices shall be approved by CITY if the work performed is in accordance with the extra work or additional services requested, and if CITY is satisfied that the statement of hours worked and costs incurred is accurate. Such approval shall not be unreasonably withheld. Any dispute between the parties concerning payment of such an invoice shall be treated as separate and apart from the ongoing performance of the remainder of this Agreement.

5. Should CITY elect not to pursue recovery of an item identified by CONSULTANT as a recovery item, the amount and reason must be documented in writing.

6. Any recoverable item that CITY has made in writing will be excluded by CONSULTANT as an actionable item based on such written notification and description before the beginning of the audit process.

**SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY ERRORS & OMISSIONS COVERAGE PART
DECLARATIONS**

PLEASE READ YOUR POLICY CAREFULLY.

THIS IS A CLAIMS MADE POLICY COVERAGE FORM AND UNLESS OTHERWISE PROVIDED HEREIN, THE COVERAGE OF THIS FORM IS LIMITED TO LIABILITY FOR CLAIMS FIRST MADE DURING THE POLICY PERIOD, OR THE EXTENSION PERIOD, IF APPLICABLE. DEFENSE COSTS SHALL BE APPLIED AGAINST THE DEDUCTIBLE.

No. SP 1550943

Effective Date: **07/24/2012**

12:01 AM STANDARD TIME

ITEM I. NAMED INSURED AND PRINCIPAL ADDRESS

**Communication Brokers and Consultants Inc.
23939 Ventura Boulevard
Calabasas, CA 91302**

ITEM II. POLICY PERIOD: (MO. DAY YR.) From: 07/24/2012 To: 07/24/2013

Specified Professions Professional Liability

ITEM III. LIMITS OF LIABILITY	\$1,000,000	EACH CLAIM
	\$2,000,000	ANNUAL AGGREGATE
ITEM IV. DEDUCTIBLE:	\$5,000	EACH CLAIM
ITEM V. PREMIUM:		
ITEM VI. RETROACTIVE DATE:	7/24/2012	

APPROVED AS TO FORM

**JENNIFER McGRATH
CITY ATTORNEY**

**ITEM VII. Coverage Form(s)/Part(s) and Endorsement(s) made a part of this policy at
See Endorsement EOD (01/95)**

**ITEM VIII. Soley in the performance of Professional Services as a(n) Audit Service,
Telecommunications Consultant for others for a fee.**

THESE DECLARATIONS ARE PART OF THE POLICY DECLARATIONS CONTAINING THE NAME OF THE INSURED AND THE POLICY PERIOD.

UNITED STATES LIABILITY INSURANCE GROUP
WAYNE, PENNSYLVANIA

This endorsement modifies insurance provided under the following:

SPECIFIED PROFESSIONS PROFESSIONAL LIABILITY COVERAGE FORM

ADDITIONAL INSURED ENDORSEMENT

In consideration of the premium paid, it is agreed that the following is added as an Additional Insured, but only as respect to **Claims** arising out of any negligent act, error, omission, or **Personal Injury** in the rendering or failure to render **Professional Services** by any individual or entity of the **Named Insured** specified in Item I. of the Declarations.

Effective Date: 07/24/2012
City of Huntington Beach
200 Main Street
Huntington Beach, CA 92648

All other terms and conditions of this Policy remain unchanged. This endorsement is a part of the **Insured's** Policy and takes effect on the effective date of the **Insured's** Policy unless another effective date is shown.



CITY OF HUNTINGTON BEACH

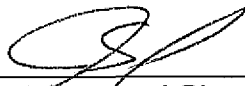
Professional Service Approval Form

PART II

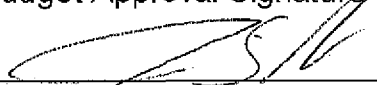
Date: 5/30/2012 Project Manager: Jack Marshall
Requested by Name if different from Project Manager:
Department: Information Services

PARTS I & II OF THE PROFESSIONAL SERVICES CONTRACTS APPROVAL FORM MUST BE COMPLETED BY THE REQUESTING DEPARTMENT AND SIGNED FOR APPROVAL. PART I & II MUST BE FILED WITH ALL APPROVED CONTRACTS.

- 1) Name of consultant: Communications Brokers & Consultants, Inc.
- 2) Contract Number: IS 012-005-00
(Contract numbers are obtained through Finance Administration x 5630)
- 3) Amount of this contract: \$ compensation based on contingency fee 20% recovered credits/revenue
- 4) Is this contract less than \$50,000? ☒ Yes ☐ No
- 5) Does this contract fall within \$50,000 and \$100,000? ☐ Yes ☒ No
- 6) Is this contract over \$100,000? ☐ Yes ☒ No
(Note: Contracts requiring City Council Approval need to be signed by the Mayor and City Clerk. Make sure the appropriate signature page is attached to the contract.)
- 7) Were formal written proposals requested from at least three available qualified consultants? ☐ Yes ☒ No
- 8) Attach a list of consultants from whom proposals were requested (including a contact telephone number.)
- 9) Attach Exhibit A, which describes the proposed scope of work.
- 10) Attach Exhibit B, which describes the payment terms of the contract.



Budget Approval Signature



Director of Finance (or designee) Signature

6-13-12

Date

6-13-12

Date



CITY OF HUNTINGTON BEACH

Professional Service Approval Form

PART I

Date: 5/29/2012 Project Manager Name: Jack Marshall
Requested by Name if different from Project Manager:
Department: Information Services

PARTS I OF THE PROFESSIONAL SERVICES CONTRACTS APPROVAL FORM MUST BE COMPLETED BY THE REQUESTING DEPARTMENT AND SIGNED BY THE CITY MANAGER, FOR APPROVAL, BEFORE PROCEEDING WITH THE SOLICITATION OR CONTRACT PROCESS. PART I MUST BE FILED WITH ALL APPROVED CONTRACTS.

- 1) Briefly provide the purpose for the agreement:
Forensic audit of telecom service contracts
- 2) Estimated cost of the services being sought: \$ cost recovery, net of revenue recovered
- 3) Are sufficient funds available to fund this contract? ☒ Yes ☐ No
If no, please explain:
- 4) Check below how the services will be obtained:
☐ A Bid solicitation process in accordance to the MC 3.03.060 procedures will be conducted.
☒ MC 3.03.08(b) – Other Interagency Agreement procedure will be utilized.
☐ MC 3.03.08 – Contract Limits of \$30,000 or less exempt procedure will be utilized.
- 5) Is this contract generally described on the list of professional service contracts approved by the City Council? If the answer to this question is "No," the contract will require approval from the City Council.) ☐ Yes ☒ No

Fiscal Services Manager Signature

5-31-2012

Date

- 6) Amount, Business Unit (8 digits) and Object Code (5 digits) where funds are budgeted
(Please note that a budget check will occur at the object code level):

\$
\$
\$

\$
\$
\$

Budget Approval

Date

Department Head Signature(s)

6-13-12

Date

Director of Finance's Signature

6/13/12

Date

Deputy City Manager's Signature

6/13/12

Date

APPROVED ☐ DENIED ☐

City Manager's Signature

Date